

## 25VECV04381 25VECV04381

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-09-14

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Sherman v BMW

Ex parte

application to special set motion to compel depositions: Denied. According to plaintiff's counsel, they first scheduled the deposition of the PMQ for depo on 12/29/2026. Defendant objected and failed to provide dates. The motion to compel should have been filed at that time and the court have ordered the deposition for 10 days post motion hearing. Instead, plaintiff served another notice for depo on 4/10/2026 and did not obtain dates. The motion could have been filed then and the deposition ordered for 10 days post motion.

Trial is 9/24/2026. The motion was untimely filed. In order for the motion to have been timely filed, it would have been required to be filed 16 court days+2 calendar days for electronic service so that the potential hearing would be by the discovery cutoff which is 15 days before trial, i.e., Sept. 9. This motion was served on 9/4/2026. The last date the motion could have been filed to be heard by Sept. 9th is Aug. 24th.